

M/S N.K. Enterprises v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · WRIT - C No. 11051 of 2022 · **Writ disposed; relegated to clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

Writ against a Tehsildar recovery citation for electricity dues, and for restoration of supply, disposed without opinion on merits. Petitioner given liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed, to be decided in accordance with law within the next four weeks after hearing. Coercive action on the demand stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, M/s N.K. Enterprises, filed a writ seeking quashing of a recovery citation dated 27 November 2020 issued by the Tehsildar, Tehsil Sadar, District Rampur, demanding Rs 2,31,908 and other charges, and a mandamus to restore its electricity connection after deposit of dues. Counsel for the Power Distribution Corporation stated that the petitioner could file an objection to the demand, which would be decided in a time-bound manner. The Division Bench expressed no opinion on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A writ challenging a recovery citation for electricity dues and seeking restoration of supply is disposed of without opinion on merits. The consumer may file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so filed, it shall be decided in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined to examine the recovery citation on merits and relegated the consumer to the statutory objection under para 6.5, with a short stay of coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Counsel for the licensee having stated that an objection to the demand would be decided in a time-bound manner, the Court directed that a para 6.5 objection, if filed within four weeks, be decided within the next four weeks after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION AND QUANTUM OF ELECTRICITY DUES

Court expressly declined to opine on merits. ¶ 1

NOT DECIDED — RESTORATION OF THE ELECTRICITY CONNECTION

Mandamus not granted; relegated to the para 6.5 objection. ¶ 1